

Defendant Chapman's Motion for a Protective Order GRANTED.

The deposition of William Chapman will proceed in person, with the assistance of closed captioning and Mr. Chapman will use functioning hearing aids.

Plaintiff's request for sanctions DENIED.

Case Management Conference continued to 11.20.26. Counsel ordered to file new and updated Case Management Statements regarding status of Discovery/ Alternative Dispute Resolution/ compliance of CRC 3.724 & LR 3218. Failure to do so will result in sanctions. Updated Case Management Statements must be filed no later than 10 days before the Case Management Conference. All Case Management Statements shall be submitted on pleading paper with a brief summary of the status of the case and any specified issues that need to be addressed by the court. Do not use Judicial Counsel form CM-110.

Additionally, the court is ordering that prior to filing any further discovery motions, the party must request an informal discovery conference with the court to discuss the discovery issues. No future discovery motions shall be heard without an IDC conducted first.

7.

| CASE #      | CASE NAME         | HEARING NAME                                                                                                                                                    |
|-------------|-------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------|
| CVPS2509844 | CORTEZ VS CHAPMAN | PLAINTIFF WENDY ALEJANDRA CORTEZ'S MOTION FOR TERMINATING SANCTIONS, OR IN THE ALTERNATIVE, ISSUE AND EVIDENTIARY SANCTIONS, AND REQUEST FOR MONETARY SANCTIONS |

**Tentative Ruling:** A court, after notice and an opportunity for a hearing, may impose terminating, issue, or evidentiary sanctions for misuse of the discovery process. (CCP § 2023.030.) Terminating sanctions results in the striking of a pleading or parts of the pleading; an order staying further proceedings until the discovery order has been obeyed; order dismissing an action; or an order rendering judgment by default against the drafting party. (*Id.* at (d).) “An issue sanction is an order that designated facts are deemed established in favor of the party adversely affected by the misuse of the discovery process, or an order prohibiting the sanctioned party from supporting or opposing designated claims or defenses. An evidence sanction is an order prohibiting designated matters from being introduced in evidence. (*New Albertson, Inc. v. Superior Court* (2008) 168 Cal.App.4th 1403, 1422.)

Typically, terminating, issue, and evidentiary sanctions under CCP § 2023.030 only occur when there has been a violation of a court order. “Section 2023.030 authorizes a court to impose the specified types of sanctions, ‘[t]o the extent authorized by the chapter governing any particular discovery method or any other provision of this title.’ This means that the statutes governing the particular discovery methods limit the permissible sanctions to those sanctions provided under the applicable governing statutes.” (*New Albertsons, Inc., supra*, 168 Cal.App.4th at 1422.) The Discovery Act statutes “state that

the court may impose an issue, evidence, or terminating sanction, however, only if a party fails to obey a court order compelling discovery.” (*Id.* at 1423.) “The statutory requirement that there must be a failure to obey an order compelling discovery before the court may impose a nonmonetary sanction for misuse of the discovery process provides some assurance that such a potentially severe sanction will be reserved for those circumstances where the party’s discovery obligation is clear and the failure to comply with that obligation is clearly apparent.” (*Id.*)

Some courts “have held that nonmonetary sanctions of misuse of the discovery process may be imposed in certain circumstances not involving the sanctioned party’s failure to obey an order compelling discovery.” (*New Albertsons, Inc., supra*, 168 Cal.App.4th at 1424.) The general rule is “if it is sufficiently egregious, misconduct committed in connection with the failure to produce evidence in discovery may justify the imposition of nonmonetary sanctions even absent a prior order compelling discovery, or its equivalent. Furthermore, a prior order may not be necessary where it is reasonably clear that obtaining such an order would be futile.” (*Id.* at 1426.)

Discovery sanctions are issued to remedy discovery abuse, not to punish the offending party. (*Williams v. Russ* (2008) 167 Cal.App.4th 1215, 1223.) The sanctions should be proportionate to the offending party’s misconduct. (*Id.*) “[W]here a violation is willful, preceded by a history of abuse, and the evidence shows that less severe sanctions would not produce compliance with the discovery rules, the trial court is justified in imposing the ultimate sanctions.” (*Mileikowsky v. Tenet Healthsystem* (2005) 128 Cal.App.4th 262, 279-280.) Typically, less severe sanctions (like monetary sanctions) are awarded first, before escalating to evidentiary, issue, or terminating sanctions. It is not improper for a court to preclude a party from producing at trial the evidence they repeatedly refused to produce during discovery. (*Juarez v. Boy Scouts of America, Inc.* (2000) 81 Cal.App.4th 377, 389.) “Absent some unusual extenuating circumstances not present here, the appropriate sanctions when a party repeatedly and willfully fails to provide certain evidence to the opposing party as required by the discovery rules is preclusion of that evidence from the trial – even if such a sanction proves determinative in terminating plaintiff’s case.” (*Id.*)

In order to seek issue and evidentiary sanctions, the moving party is required to file a separate statement setting forth the issue and/or evidence at issue. (California Rules of Court, rule 3.1345(a)(7).) This requirement has not been complied with. As such, the requests for issue and evidentiary sanctions is denied.

The motion is denied as to the request for terminating and monetary sanctions. While Plaintiff accuses Chapman of failing to withdrawal subpoenas that he represented to Plaintiff and the Court that had been withdrawn, the entity that appears to be responsible for the issues experienced by the parties is the third-party vendor used for the subpoenas - Ontellus. The subpoenas at issue are nos. 2915000, 2953990, and 2952803. The parties met and conferred extensively to limit the scope of these subpoenas and agreed to amend the subpoenas to comply with the new limited scope reached on June 3, 2026. (Charmaine V. Jackson’s Declaration, ¶¶ 4-14.) Based on an email from Ronnee Hilton from Ontellus, they received a request to amend the subpoenas based on the terms agreed to by the parties on 6.03.26. (Exhibit 18 to Charmaine V. Jackson’s Declaration.) Ontellus represented that the subpoenas at issue were withdrawn and amended on 6.05.26. (*Id.*) Plaintiff’s counsel asserted that these newly issued subpoenas were defective. (*Id.*) The parties went back and forth regarding defects in subpoenas drafted by Ontellus. (Exhibit 23, 27, 28, 29, and 30 of Charmaine V. Jackson’s

Declaration.) However, on 7.14.26 documents from the original subpoena were provided. (Exhibit 30 to Charmaine V. Jackson's Declaration.) It appears that Ontellus contends that the records were processed before the amendment. (Exhibit 30, Electronic Page 223-232 to Charmaine V. Jackson's Declaration.) Back on May 22, 2026, Ontellus represented that documents had been placed on hold and no records sought in the subpoenas would be produced. (Exhibit 26, Electronic Page, 207 of Charmaine V. Jackson's Declaration.) These documents were still produced. The production of the documents at issue do not appear to be Chapman or his counsel's fault.

Chapman's counsel has agreed to destroy the billing record that does not fit the scope of the agreed upon subpoena limits. (Declaration of Charmaine V. Jackson, 23:25-28; 24:1-13.) Counsel contends the remaining documents fit within the agreed upon scope of the subpoenas. (*Id.*) She provided a summary of these documents to Plaintiffs' counsel. Plaintiffs are not satisfied with the accounting of records provided by Chapman. Plaintiffs have not sought to obtain a copy of the documents obtained by Chapman from either Chapman's counsel or Ontellus. Due to this failure, there is no evidence that Chapman's counsel did not provide a full accounting.

Plaintiff's Motion for Terminating Sanctions, or in the Alternative, Issue and Evidentiary Sanctions, and Request for Monetary Sanctions DENIED.

Counsel for Defendant Chapman ordered to destroy all received documents that do not fit within the scope of the agreed upon subpoena limits.

8.

| CASE #      | CASE NAME                   | HEARING NAME                                          |
|-------------|-----------------------------|-------------------------------------------------------|
| CVPS2603305 | TAFOLLA VS DAP HEALTH, INC. | MOTION TO BE RELIEVED AS COUNSEL FOR DAP HEALTH, INC. |

**Tentative Ruling:**

Motion to be Relieved as Counsel for Plaintiff Gabriela Tafolla GRANTED as to attorney Anna Coughlin. Attorney is relieved effective upon the filing of the proof of service of the signed order upon the client. Attorney Coughlin directed to submit an updated proposed order, MC-053, with sections 3 and 5-9 filled out for the court to sign. File with the court no later than 9.18.26.

A status hearing re representation for Plaintiff Gabriela Tafolla is set for 11.10.26.

Status hearing re arbitration remains set for 12.14.26.